

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Christine M. Arguello**

Civil Action No. 11-cv-00874-CMA-MJW

GREG MENO,

Plaintiff,

v.

**FEDEX CORPORATE SERVICES, INC.,
A Delaware Corporation.**

Defendant.

SPECIAL VERDICT FORM

1. Do you find, by a preponderance of the evidence, that Plaintiff's national origin was a motivating factor that caused Defendant to terminate his employment?

Yes _____ No X

2. Do you find, by a preponderance of the evidence, that Plaintiff engaged in protected activity, as defined by Jury Instruction No. 18?

Yes X No _____

If you answered "yes" to question no. 2, then proceed to question no. 3.

If you answered "no" to question no. 2, then proceed to question no. 4.

3. Do you find, by a preponderance of the evidence, that Defendant retaliated against Plaintiff by terminating his employment because he engaged in protected activity?

Yes _____ No X

4. Considering the Jury Instruction Nos. 24, 25, and 26:

a. Do you find that Plaintiff was an employee at-will?

Yes X No _____

Or

b. Do you find, by a preponderance of the evidence, that Plaintiff had an implied contract of employment with Defendant?

Yes _____ No X

Or

c. Do you find, by a preponderance of the evidence, that Defendant reasonably expected Plaintiff to consider the Handbook Policies (Progressive Discipline Policy, Acceptable Conduct Policy, Progressive Corrective Action Policy, and HR Conduct and Performance Procedures) to be a commitment from Defendant; that Plaintiff reasonably relied on those policies to his detriment; and that injustice can be avoided only by enforcing the Handbook Policies?

Yes _____ No X

The answers to question no. 4a and question 4b or 4c are mutually exclusive. If you answer "yes" to question no. 4a, then your answers to both questions 4b and 4c must be "no." If you answer "yes" to either question no. 4b or 4c, then your answer to question no. 4a must be "no."

If you answered "yes" to question 4a, then skip question 5, and proceed to question 6.

If you answered "yes" to question 4b, then proceed to question 5.

If you answered "yes" to question 4c, but you answered "no" to 4b, then proceed to question 6.

5. Considering Jury Instructions Nos. 24 and 25, do you find, by a preponderance of the evidence, that Defendant breached its implied contract with Plaintiff?

Yes _____ No ~~X~~ NA Z

6. Considering Jury Instruction No. 28, do you find, by a preponderance of the evidence, that Defendant would have terminated Plaintiff for the unauthorized tape recording of a meeting?

Yes X No _____

Based on your answers to the first six questions, please answer the following questions:

7. If you answered "yes" to question no. 1 and/or question nos. 2 and 3, and considering Jury Instruction Nos. 27 and 28, to what amount of back pay (lost wages) is Plaintiff entitled?

\$ _____

8. If you answered "yes" to question nos. 4b and 5, what amount of actual damages (including back pay, less damages, if any, awarded in question No. 7) do you award Plaintiff?

\$ _____

9. If you answered "no" to question no. 4b but "yes" to question no. 4c, what amount of actual damages (including back pay, less damages, if any, awarded in question No. 7) do you award to Plaintiff?

\$ _____

Foreperson Signature: _____

Dated: August 5, 2012.